

Form 15-43
(Rule 15-43)

COURT FILE NUMBER _____

COURT OF KING'S BENCH FOR SASKATCHEWAN
(FAMILY LAW DIVISION)

JUDICIAL CENTRE _____

PETITIONER _____

RESPONDENT _____

APPLICATION FOR SUMMARY JUDGMENT
(FAMILY LAW PROCEEDING)

NOTICE TO RESPONDENT [or PETITIONER], _____ .
(name)

This application is being made by the petitioner, _____. You are the respondent.
(or This application is being made by the respondent, _____. You are the petitioner.)

You have the right to state your side of this matter before the Court. To do so, you must be in Court when the application is heard as shown below:

Where _____

Date _____

Time _____

(Read the Notice at the end of this document to see what else you must do and when you must do it.)

1 Precise relief or remedy sought:

2 Grounds for making this application: *(Set out the statutory provision, rule, order or other legal basis on which the party making the application relies to justify the remedy sought.)*

3 Material evidence to be relied on:

4 The applicable rules are:

5 The applicable Acts and regulations are:

6 A draft order or draft judgment setting out the precise relief or remedy sought is attached.

DATED at _____, Saskatchewan, this _____ day
of _____, 2 _____.

(signature of party or party's lawyer)

NOTICE

If you wish to oppose the application, you or your lawyer must prepare an affidavit in response, serve a copy at the address for service given at the end of this document, and file it in the court office, with proof of service, at least 7 days before the date set for hearing the application. You or your lawyer must also come to Court for the hearing of the application on the date set.

(If a support order is sought) TAKE NOTICE that whether or not you oppose this application, you must serve and file a Financial Statement in Form 15-47 at least 7 days before the date set for hearing the application. You must complete the appropriate schedules of the Financial Statement and attach to it the financial information required by the Federal Child Support Guidelines. If this application includes a claim for child support and you do not comply with this notice or the Notice to File a Financial Statement, which has also been served on you, THE COURT MAY IMPUTE INCOME TO YOU AND MAY DETERMINE THE AMOUNT OF CHILD SUPPORT PAYABLE ON THE BASIS OF THAT IMPUTED INCOME. If you have been served with an application for child support, please consult the Federal Child Support Guidelines.

AND FURTHER TAKE NOTICE that if you do not appear at the hearing [or fail to provide the required financial information *(if a support order is sought)*], an order may be made in your absence and enforced against you. YOU WILL NOT RECEIVE FURTHER NOTICE OF THIS APPLICATION.

CONTACT INFORMATION AND ADDRESS FOR SERVICE

If prepared by a lawyer for the party

Name of firm: _____

Name of lawyer in charge of file: _____

Address of legal firm: _____
(set out the street address)

Telephone number: _____

Fax number (if any): _____

E-mail address (if any): _____

or

If the party is self-represented

Name of party: _____

Address for service: _____
(set out the street address)

Telephone number: _____

Fax number (if any): _____

E-mail address (if any): _____

Amended, Gaz. 13 Oct. 2023.